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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

Plot No: AH/5 (2nd and 4th Floor), Premises No : MAR 16-1111, Action Area-1A,
New Town, Kolkata - 700163,

Tel : (033) 2962 3756, FAX No (033) 2962 3757

E.mail : wberc99@gmail.com/cp-wberc@gov.in, Website : www.wberc.gov.in

NOTIFICATION

No. 72/WBERC

Kolkata, the 15th September, 2021

In exercise of the powers conferred by sub-section (1) and clauses (zp) of sub-section (2) of section 181 read with section 46 of the Electricity Act, 2003 (36 of 2003) and all powers enabling it in this behalf, and after previous publication, the West Bengal Electricity Regulatory Commission hereby makes the following regulations to amend the West Bengal Electricity Regulatory Commission (Recovery of Expenditure for Providing New Connection) Regulations, 2013 published under notification no. 53/WBERC dated 2nd April 2013 and as amended (herein referred to as the "Principal Regulations"), namely:—

1. Short title, extent and commencement:

- 1.1 These Regulations may be called the West Bengal Electricity Regulatory Commission (Recovery of Expenditure for Providing New Connections) (Second Amendment) Regulations, 2021.
- 1.2 These regulations extend to the whole of West Bengal.
- 1.3 These regulations shall come into force from the date of publication of these Regulations in the Official Gazette.

2. A new clause k-1) shall be added before Clause l) of regulation 2 of the Principal Regulations as under:

"k-1)Grievance Redressal Regulations" means West Bengal Electricity Regulatory Commission (Guidelines for Establishment of Forum for Redressal of Grievances of Consumers and Time and Manner of Dealing with such Grievances by the Ombudsman) Regulations, 2013 including any amendment, modification or re-notification thereof under any name whatsoever;

3. Regulation 14 of the Principal Regulation shall be substituted as under:**"14. Effect of splitting of load:**

If any applicant / intending consumer / consumer submits any application for new connection(s) with the intention of splitting the load to obtain the benefit of lower charges or furnishes wrong / inaccurate/ false statements, his application would be liable to be rejected under the provision of the Act, or the regulations made thereunder, and 25% of payments / deposits if already made by him by way of charges for obtaining new connection in terms of these regulations, shall be forfeited by the distribution licensee before the rest of the charges is refunded to him. While rejecting the application the consumer / intending consumer is to be intimated in writing about the ground for rejection. It will be the onus of the applicant to prove that the application for new connection is not for the purpose of splitting the load. For any dispute in this regard the applicant/ intending consumer/ consumer may lodge his grievances along with all necessary documents before the Grievance Redressal Officer (GRO) of the said Licensee as per provisions made in Grievance Redressal Regulations for redressal. If the affected consumer/ intending consumer is not satisfied with the order of the Grievance Redressal Officer or does not receive any order from that Grievance Redressal Officer within the time specified in the Grievance Redressal Regulations he can approach the Ombudsman for redressal of his grievances as per provisions made in the Grievance Redressal Regulations."

By order of the Commission,

Place: Kolkata

Dated: 15th September 2021

MAUSUMI GUHARROY, IAS
Secretary of the Commission